

Mohamad Gulshan v. Managing Director, Paschimanchal Vidyut Vitran Nigam Ltd.

Allahabad High Court · Division Bench · 10 December 2012 · WRIT - C No. 62719 of 2012 · **Writ disposed; bill-correction complaint to Executive Engineer**

HEADNOTE

A consumer seeking to quash a disconnection notice and to have a disputed electricity bill corrected must pursue a complaint under the U.P. Electricity Supply Code, 2005 before the Executive Engineer. The High Court disposed of the writ with liberty to do so and directed the Executive Engineer to consider and decide the complaint in accordance with law.

FACTUAL SUMMARY

The petitioner, Mohamad Gulshan, challenged a 26 September 2012 notice of Paschimanchal Vidyut Vitran Nigam Ltd. stating that his supply had been disconnected and that reconnection would be considered only after payment of Rs. 24,963. He asserted that he had already applied to the Executive Engineer for adjustment of Rs. 3,000 and correction of the bill. The writ was first listed on 5 December 2012 and adjourned for instructions, then heard on 10 December 2012.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::correction-of-bills

bill-correction-complaint

HOLDING

A writ seeking quashing of a disconnection notice conditioned on payment of arrears, and correction of the electricity bill, is not decided on merits; the consumer has a remedy of an appropriate complaint for correction of bills under the U.P. Electricity Supply Code, 2005, and the Executive Engineer shall consider and decide that complaint in accordance with law. ¶ 2

FLAG Order cites the Supply Code 2005 generally, without a clause number.

PRINCIPLE TAGS

relegate-to-statutory-remedy A consumer seeking to quash a disconnection notice and to have a disputed electricity bill corrected must pursue a complaint under the U.P. Electricity Supply Code, 2005 before the Executive Engineer.. ¶ 2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER RS. 24,963 WAS DUE AND WHETHER DISCONNECTION OR RECONNECTION WAS JUSTIFIED

Left to the Executive Engineer on a Supply Code complaint ¶ 2